

The M.P. Municipal Corporation Contract Service (Condition of Appointment and Service) Rules, 2007

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State of Madhya Pradesh - Act

The M.P. Municipal Corporation Contract Service (Condition of Appointment and Service) Rules, 2007

MADHYA PRADESH

India

The M.P. Municipal Corporation Contract Service (Condition of Appointment and Service) Rules, 2007

Rule

THE-M-P-MUNICIPAL-CORPORATION-CONTRACT-SERVICE-CONDITION-OF-APPOINTMENT-AND-SERVICE-RULES-2007 of 2007

Published on 16 October 2007

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The M.P. Municipal Corporation Contract Service (Condition of Appointment and Service) Rules, 2007

Published vide Notification No. 23-F-1-12-2007-18-3, dated 16-10-2007, M.P. Rajpatra (Asadharan), dated 17-10-2007 at pages 1034 (4)-(8)

In exercise of the powers conferred by Section 433 read with sub-section (2-a) of Section 58 of the Municipal Corporation Act, 1956 (

No. 23 of 1956

) the State Government, hereby, makes the following rules for regulation of the recruitment, remuneration and other

conditions of the contract services of the officers and servants on contract basis in the Municipal Corporation, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Madhya Pradesh Municipal Corporation Contract Service (Condition of Appointment and Service) Rules, 2007.

(2)

These rules shall come into force from the date of its Publication in the "Madhya Pradesh Gazette".

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh Municipal Corporation Act, 1956 (No. 23 of 1956

);

(b)

"Annexure" means Annexure appended to these rules;

(c)

"Appointing Authority" means Mayor-in-Council as specified by the order under sub-section (2-a) of Section 58 of the Act;

(d)

"Contract Appointment" means any person appointed by any Municipal Corporation on contract basis under these rules;

(e)

"Contract Officer/Employee" means any person appointed by the Municipal Corporation, for the Execution of the Work under its control;

(f)

"Corporation" means any Municipal Corporation constituted under the Act;

(g)

"Government" means the Government of Madhya Pradesh;

(h)

"Mayor-in-Council" means Mayor-in-Council constituted under Section 37 of the Act and includes the City Administrator appointed by the State Government under sub-section (1) of Section 423 of the Act;

(i)

"Schedule" means schedule appended to these rules;

(j)

"Section" means the Section of the Act;

(k)

"Selection Committee" means the Selection Committee constituted for appointment of contract service officers/employees as specified in column (6) of the Schedule-1.

3.

Extent and application.

- These Rules shall apply to the employees/officers employed on contract basis by the Municipal Corporations to execute the work under their control.

4.

Payment of contract Amount.

(1)

The monthly contract amount to the members of services employed on contract basis shall be paid as specified in column (3) of the Schedule.

(2)

The contract amount to the member of service on contract basis shall not be paid for the days in which he is absent from duty.

5.

Mode of Selection and appointment to the posts.

(1)

The number of contract posts in the Municipal Corporation shall be determined by the Appointing Authority and after the commencement of these rules the appointments in the cadre of Contract Officers/Employees shall be made by direct recruitment through the selection.

(2)

Selection and appointment. - All the appointment to the posts specified in Schedule shall be made by the Appointing Authority on the basis of the recommendation of the Selection Committee as specified in column (6) of the said Schedule.

(3)

Age Limit. - The minimum and maximum age limit for contractual appointment shall be 21 years and 65 years respectively, on the first day of January of that year in which the appointment is to be made.

(4)

Minimum Educational Qualification. - Minimum Educational Qualification for the appointment on contract basis of candidates shall be such as specified in the Schedule.

(5)

Provision for Reservation. - There shall be reserved posts for the candidates belonging to Scheduled Castes. Scheduled Tribes and other Backward Classes at the stage of direct recruitment on contract basis in accordance with the provisions contained in Madhya Pradesh Lok Seva (Anusuchit Jatiyon, Anusuchit Jan Jatiyon Aur Anya Pichhada Vargo ke liye Arakshan) Adhiniyam, 1994 (No. 21 of 1994) and orders/instructions issued by the Government from time to time.

(6)

Advertisement. - The posts of contract officers/employees shall be advertised by the Appointing Authority in at least two state level newspapers. A copy of the advertisement shall also be exhibited on the notice board of the Municipal Corporation.

(7)

On receiving the application, the Commissioner shall scrutinize the applications received and shall prepare a list of the eligible candidates.

(8)

The Appointing Authority shall ensure that the selection of the candidates shall be made by competitive examination or by interview or by both.

(9)

The selection of the candidates shall be made by the committee as specified in the Schedule.

(10)

The selection committee shall prepare a list of the candidates on the basis of the marks obtained in competitive examination or interview or both as the case may be and such selection list shall contain the number in double to the number of the posts to be filled. This selection list shall be submitted to the Appointing Authority.

(11)

The appointing authority shall make the appointment in such serial number as their appeared in the selection list.

6.

Period of Contract Service and Posting.

(1)

The period of service of contract officer/employees on the contract basis shall be for two years.

(2)

Extension of Contract period.-After completion of the two years service and on the basis of the appraisal report and recommendation of the Appointing Authority, the State Government shall take final decision in respect of the extension of the contract period after assessment of the duty conduct and performance of the contract officer or employee.

7.

Discipline and control during the contract period.

- The administrative control upon the members of service on contract basis shall be under the administrative control of the concerned Municipal Corporation and the person appointed under these rules shall be governed by the conduct

rules applicable for the Municipal Corporation employees.

8.

Action on involvement in misconduct or any criminal activity.

- On any misconduct under Rule 7 above or involvement in any criminal activity by the members of service appointed under these rules, the Appointing Authority may after giving reasonable opportunity of being heard terminate the contract appointment.

9.

Other Conditions.

(1)

The selected candidate shall execute an agreement with the Appointing Authority/Commissioner on Non Judicial Stamp of Rs. 50 (Rupees fifty only) just after the receipt of the appointment order. Expenses on execution of the agreement shall be borne by the selected candidate.

(2)

It is compulsory for the person to join duties within 15 days of the issue the appointment order at the place of contract appointment. In the event of not joining the duties within the said period, the contract appointment shall stand cancelled automatically.

(3)

Any person appointed under these rules shall work under the administrative control of the Commissioner the Municipal Corporation.

(4)

Any person appointed under these rules shall be entitled to receive travelling allowance as applicable to the officers/employees of the Municipal Corporation.

(5)

The members of service on contract basis shall not be entitled for any pensionary benefits and shall not be entitled for any bonus etc.

(6)

The officers/employees appointed on contract basis shall not be entitled for transfer nor shall their post be transferable.

(7)

The contract officer or employee shall be entitled for maximum 13 days casual leave in a calendar and at once may avail only three days casual leave. Women officers/employees shall be entitled for ninety days maternity leave. The power to sanction above mentioned leave shall vest in the Commissioner of the Municipal Corporation.

(8)

The officers/employees appointed on contract basis shall not be entitled for regularization.

(9)

The contract service can be terminated after one month notice or on payment of one month contract amount by either party at any time.

(10)

Am person appointed under these rules shall not be entitled for dearness allowance, house rent allowance or any other allowance.

(11)

If the member of service on contract basis is absent from his duly for more than a month without any specific reason and without intimation, then his contract appointment shall be deemed to be terminated automatically from the date of such absence.

(12)

Other service conditions shall be such as may be specified in the appointment order.

10.

Interpretation.

- If any question arises relating to the interpretation of any provisions of these rules, it shall be referred to the Government, whose decision thereon shall be final.

Schedule

(See Rule 5)

S. No.

Post included in the contract service

Monthly contract amount in Rs.

Minimum Educational Qualifications

Experience

Selection Committee

Appointing authority

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

Chartered Accountant

24,000

C.A. degree from the institute of the Chartered Accountant of India

5 years

1. Commissioner Chairman
2. Concerned Head of the Department-Member
3. One member not below the rank of Dy. Director nominated by the Commissioner Urban Administration and Development ? Member
4. One officer nominated by the Commissioner Member Secretary/Coordinator
Mayor-in-Council

2.

Community Development Officer

10,000

M.A. (Sociology/ Community Development diploma in Social Management)

2 years

3.

System Administrator

15,000

B.E. (Computer) M.C.A.

5 years

4.

e-governance Change Manager

15,000

B.E. (Computer) M.C.A.

5 years

5.

Financial Analyst

20,000

Degree awarded from the Institute of Chartered Financial Analyst of India/M.B.A.(Finance)

5 years

6.

Water Supply Sewerage Engineer

15,000

B.E./B.Tech (Civil) M.E./ M.Tech (Public Health Engineering)

5 years

7.

Civil Engineer

15,000

B.E. Civil

2 years

8.

Project Manager

20,000

M.B.A.

5 years

9.

Environmental Specialist

20,000

B.A./M.Tech. Environment (Engineering/ Environment Planner)

2 years

10.

Procurement Officer

15,000

B.Tech/B.E. (Civil/ Mechanical)

2 years

11.

Programmer

12,000

M.C.A./B.E. (Computer)

2 years

12.

Data Entry Operator

7,000

B.C.A./ P.G.D.C.A.

2 years

Annexure-I

[See Rule 9 (1)]

Agreement Form

This agreement is made on the day of.....Between (Name).....S/o/W/o.....Age.....Resident of.....(here in after referred to as contract officer/employee) on one part and the Commissioner Municipal Corporation (herein after referred to as employee) on the second part.

WHEREAS the employer vide order No..... Dated.....has appointed the officer/employee on contract for Municipal Corporation..... District.....and the contract officer/employee has agreed for the contract appointment on the said post under the recruitment on contract basis.

Now it is agreed between the parties as follows:

(i)

Both the parties shall be bound by said rules and any breach of any provision of said rules by the employee shall be deemed to be misconduct.

(ii)

The employee shall be deemed to be in contract from the date of joining at the place of appointment and the monthly contract amount shall be paid from the date.

(iii)

In case of any dispute regarding this contract, the jurisdiction shall be the Court situated within the local limits of the Municipal Corporation.

(iv)

In case of any misconduct or indulgent in any criminal activity, the employer shall have the right to terminate the contract service of such contract officer/employee.

In witness where of the parties hereto have signed this agreement on the date and year respectively mentioned against their signature :

Parties

Parties

(ii) Signature

(ii) Signature

Name.....

Name.....

Address.....

Address.....

?.....

?.....

.....

.....

Parties

Parties

(ii) Signature

(ii) Signature

Name.....

Name.....

Address.....

Address.....

?.....

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